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A Limited Liability Law Company

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NIKODEM PIKOR

Electronically Filed
FIRST CIRCUIT
1RC191003776
19-AUG-2026
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Dkt. 433 MOT

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Plaintiff,

vs.

NIKODEM PIKOR,

Defendant.

NIKODEM PIKOR,

Counterclaim Plaintiff,

v.

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors,

Counterclaim Defendant.

Civil No. 1RC19-1-0003776

DEFENDANT/ COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL; MEMORANDUM IN SUPPORT OF MOTION; DECLARATION OF COUNSEL; DECLARATION OF NIKODEM PIKOR; CERTIFICATE OF SERVICE

Judge: Presiding Judge

DEFENDANT/ COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL

Defendant and Counterclaim Plaintiff NIKODEM PIKOR ("Defendant"), by and through his counsel, Revere & Associates, LLLC, hereby moves this Court for an order extending the time to file a Notice of Appeal from the Order Granting in Part and Denying in Part Plaintiff and Counterclaim Defendant Association of Apartment Owners of Marine Surf Waikiki, Inc.'s Motion for Attorneys' Fees and Costs, which was entered on June 15, 2026 (Dkt. 423), and for which the Notice of Entry of Judgment or Order was filed on June 23, 2026 (Dkt. 429).

This Motion is brought pursuant to Rule 4(a)(4) of the *Hawai'i Rules of Appellate Procedure* ("HRAP"), Rule 77(d) of the *District Court Rules of Civil Procedure* ("DCRCP"), and is supported by the attached Declaration of Counsel, the records and files herein, and any oral argument presented at the hearing on this matter.

Dated: Kailua, Hawai'i, August 19, 2026.

/s/ Amanda L. Dutcher
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant NIKODEM PIKOR

MEMORANDUM IN SUPPORT OF MOTION

I. Introduction and Factual Background

This matter arises out of a protracted litigation involving the Association of Apartment Owners of Marine Surf Waikiki, Inc. ("AOAO") and Nikodem Pikor ("Mr. Pikor"). On June 27, 2024, the AOAO filed its Motion for Attorneys' Fees and Costs following trial proceedings as Dkt. 399. Mr. Pikor filed a timely Opposition on July 31, 2024, as Dkt. 405, and the AOAO filed its Reply on August 1, 2024, as Dkt. 407.

Hearing on the AOAO's Motion for Attorneys' Fees were held on August 5, 2024 and continued hearing on January 13, 2025. Following oral arguments, the matter was taken under advisement by the Court.

An extraordinary and unexpected seventeen (17) month delay occurred between the date of the January 13, 2025 hearing and the issuance of the Court's final decision. On June 15, 2026, the Court issued its Order Granting in Part and Denying in Part Plaintiff's Motion for Attorneys' Fees and Costs, as Dkt. 423. Subsequently, on June 23, 2026, the clerk entered the formal Notice of Entry of Judgment or Order, as Dkt. 429.

Pursuant to *Hawaii Rules of Appellant Procedure* ("HRAP"), Rule 4(a)(1), the standard deadline to file a Notice of Appeal from the June 23, 2026, Entry of Judgment was July 23, 2026. However, due to the extreme duration of the delay between the oral hearing and the eventual order, a technical problem with the firm's email account, and an unprecedented criminal disruption of Mr. Pikor's communication network, Mr. Pikor is requesting an extension of the deadline to file a notice of appeal from the June 23, 2026, Entry of Judgment.

Throughout the litigation, Mr. Pikor's counsel utilized the primary email address on file (nikodempikor@gmail.com) to transmit all case updates to Mr. Pikor. However,

unknown to Counsel, in September 2025, Mr. Pikor's email had been hijacked and compromised via a cyber-attack targeting Mr. Pikor. Counsel emailed Mr. Pikor notice of the June 15, 2026, Order and the June 23, 2026, Judgment on June 16, 2026, and June 23, 2026, respectively using the nikodempikor@gmail.com address. However, unknown to Counsel, as of September 2025, Mr. Pikor had moved to using a different email address.

On August 14, 2026, Counsel learned of Mr. Pikor's new email address and that same day sent the Order, Judgment, and related papers to Mr. Pikor using his new email address. Mr. Pikor instructed counsel in writing on August 17, 2026, to preserve the appeal.

Mr. Pikor now moves immediately—within the 30-day outer grace period provided under HRAP Rule 4(a)(4)(B) expiring on August 24, 2026—to extend the time to file his Notice of Appeal.

II. LEGAL STANDARD

HRAP Rule 4(a)(4)(B) explicitly governs requests to extend filing deadlines in civil appeals appeals. It provides that the court appealed from, upon a showing of good cause or excusable neglect, may extend the time for filing a notice of appeal upon motion filed not later than 30 days after the expiration of the time prescribed by HRAP Rule 4(a)(1).

The Hawai‘i Supreme Court has carefully analyzed the boundaries of "excusable neglect" in the context of missed appellate deadlines. In the seminal case *Enos v. Pac. Transfer & Warehouse*, 80 Hawai‘i 345, 910 P.2d 116 (1996), the Court affirmed that while mere failure to review clear rules does not warrant relief, an innocent

administrative oversight or communication breakdown can constitute excusable neglect when accompanied by unexpected or extraordinary external factors.

Furthermore, Hawai‘i courts look to the equitable framework defined by the United States Supreme Court in *Pioneer Investment Services Co. v. Brunswick Associates Ltd. Partnership*, 507 U.S. 380 (1993) to resolve whether a party's neglect is legally excusable. Under the *Pioneer* balancing test, courts weigh four key equitable factors:

1. The danger of prejudice to the non-moving party;

2. The length of the delay and its potential impact on judicial proceedings;

3. The reason for the delay, including whether it was within the reasonable control of the movant; and

4. Whether the movant acted in good faith.

III. ARGUMENT

Applying the *Pioneer* and *Enos* standards to the present record demonstrates that equity strongly favors granting Mr. Pikor an extension of time.

A. There is No Danger of Prejudice to the AOAO

The first factor weighs decisively in favor of Mr. Pikor. The AOAO will suffer zero material or legal prejudice if this extension is granted. The underlying litigation has been active for several years, and the AOAO is fully aware that the substantial attorneys' fee award is highly contested.

B. The Length of the Delay is Minimal and Has No Adverse Impact on Proceedings

The standard deadline passed on July 23, 2026. This motion is filed on August 19, 2026, a delay of less than 30 days, and within the limits of HRAP Rule 4(a)(4)(B). This

brief window has no negative impact on the judicial administration of the First Circuit District Court or the appellate courts.

C. The Usual Channel of Communication Between Mr. Pikor and Counsel was Compromised

The 17-month gap between the January 13, 2025 hearing and the June 2026 Order meant there was little routine client contact against which a change of email by Mr. Pikor would have been noticed. During that gap, and after entry of the Order and Judgment, Counsel sent the operative papers and notice of the relevant appeal deadlines to the email address that Counsel had been using to communicate with Mr. Pikor for the duration of the litigation. Those messages did not reach Mr. Pikor because during the period where there was no activity in the case, Mr. Pikor's had stopped using this email address in response to a cyber-attack that Counsel was unaware of.

That is not a story of a client who vanished. Mr. Pikor is not asking the Court to find that communication was impossible. He is asking the Court to find that notice of a judgment in this amount went out by email, to an address that had gone quiet, and that he acted as soon as the papers arrived at the address he was actually using.

The September 2025 compromise of Mr. Pikor's old Gmail account is the reason those June and July 2026 transmissions did not land. It is not a claim that Mr. Pikor could not be reached at all, and this motion does not ask the Court to decide fault as between client and counsel. *Pioneer* does not require that finding. What it requires is the reason for the delay, the length of the delay, prejudice, and good faith. Those are supplied by the declarations: no reply to three emails at the old address; first receipt at the live address on August 14, 2026; written instruction to appeal on August 17, 2026; a delay still inside HRAP Rule 4(a)(4)(B).

The 17-month delay between the January 13, 2025 hearing and the June 2026 Order and Judgment intersected with an identity theft suffered by Mr. Pikor and interfered with his Counsel transmission of the relevant court filings. While keeping track of deadlines is within counsel's control, a year-and-a-half period of silence inevitably disrupts normal litigation flow. During this prolonged gap, counsel's notifications to Mr. Pikor were inadvertently sent to an outdated, inactive email box.

This is not a case of counsel failing to read a clear rule or forgetting a deadline, Rather, a third-party criminal actor interfered with Mr. Pikor's ability to receive electronic correspondence. Where communication lines are broken due to severe external duress, identity hijacking, and an involuntary lockout of key electronic networks, the resulting delay constitutes an objective "anomaly" rather than a standard office oversight.

This is the very type of scenario that *Enos* court recognized as a basis for finding neglect to be excusable rather than intentionally negligent.

While an attorney's knowledge is typically imputed to the client, in this case, exceptional circumstances involving third-party criminal cyber-hijacking creates an exception.

D. Mr. Pikor Has Acted in Good Faith

Mr. Pikor has never instructed anyone to forgo an appeal. He said so in writing on August 17, 2026, three days after he first received the Order, Judgment, and AOAO letter at niko@mojehawaje.pl. He is not asking the Court to treat him as unreachable. He is asking the Court not to treat a failed email channel, plus a three-day response after actual receipt, as abandonment of the appeal. Counsel's June 16, June 29, July 6, and August 14 transmissions, and the August 14 discovery of the July 21 message in spam, are set out in the Declaration of Counsel. Those facts stand on their own.

IV. CONCLUSION

For the reasons set forth above, Defendant and Counterclaim Plaintiff Nikodem Pikor respectfully requests that this Court grant this Motion and extend the deadline to file a Notice of Appeal of the Judgment in this case.

DATED: Kailua, Hawai‘i, August 19, 2026.

/s/ Amanda L. Dutcher
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant/Third Party
Plaintiff NIKODEM PIKOR

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Plaintiff, vs. NIKODEM PIKOR, Defendant.	Civil No. 1RC19-1-0003776 DECLARATION OF COUNSEL

DECLARATION OF COUNSEL

I, AMANDA L. DUTCHER, declare under penalty of law as follows:

1. I am an attorney licensed to practice law in the State of Hawai‘i and am a partner with the law firm of Revere & Associates, counsel of record for Defendant Nikodem Pikor.

2. I submit this declaration in support of the Motion to Extend the Time to File a Notice of Appeal.

3. The AOAO filed its Motion for Attorneys' Fees on June 27, 2024. Defendant filed an Opposition on July 31, 2024, and hearings were held before this Court on August 5, 2024 and January 13, 2025.

4. Prior to and after the AOAO filed its Motion for Attorneys Fees, Mr. Pikor expressed his desire to file an appeal if the Court adversely decided the AOAO's Motion.

5. Following the hearing, no written order or decision was filed for a period of approximately seventeen (17) months.

6. The Court electronically filed its Order on June 15, 2026 (Dkt. 423), and the formal Notice of Entry of Judgment/Order was issued on June 23, 2026 (Dkt. 429).

7. After receiving notice of the Court's Order granting in part and denying in part the AOAO's Motion, on June 16, 2026, I forwarded by email the Order to Mr. Pikor at the email address nikodempikor@gmail.com, which was the email address our firm had on file to communicate with Mr. Pikor. I did not receive a response to my email.

8. On June 29, 2026, I forwarded the signed Judgement and Notice of Entry of Judgment by email to Mr. Pikor at the email address nikodempikor@gmail.com and followed up regarding the time by which a notice of appeal will need to be filed and asked if he wanted to proceed with an appeal. I did not receive a response to my email.

9. On July 6, 2026, I emailed Mr. Pikor at the email address nikodempikor@gmail.com and followed up on my question of whether he wanted to proceed with an appeal. I did not receive a response to my email.

10. Because Mr. Pikor had previously confirmed his intention to appeal an adverse ruling, the total absence of a response to my emails about the judgment was uncharacteristic and indicated a breakdown in communications rather than a voluntary waiver of his rights.

11. On August 14, 2026, I discovered an email in my "Spam" mailbox from niko@mojehawaje.pl dated July 21, 2026. This was the first time I realized that Mr. Pikor had a new email address that that he may not received my previous emails with the Order and subsequent Judgment and Notice of Entry of Judgment.

12. On August 14, 2026, I emailed Mr. Pikor at niko@mojehawaje.pl stating that I had found his July 21, 2026 email in my Spam folder and that he may not have

received my previous emails. I also included the Order, Judgment, and Notice of Entry of Judgment.

13. On August 17, 2026, I received an email from Mr. Pikor asking that I immediately file a request to extend the deadline for filing a notice of appeal and that he had never changed his mind about an appeal.

14. Because of the long duration of court inactivity, while I was regularly checking the status of the case docket to see if there was any activity, since there was nothing to report, I was not regularly exchanging emails with Mr. Pikor and thus did not realize that there had been a change in his contact information.

15. It was only upon seeing the email from Mr. Pikor with a new address in my spam folder did I realize that he was using a different email and I immediately took action to inform him of the Order and Judgment and seek confirmation regarding his desire to appeal the Order.

16. This motion is brought in good faith and not for the purpose of improper delay.

I DECLARE UNDER PENALTY OF PERJURY THAT THE FOREGOING FACTS ARE TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE.

DATED: Kailua, Hawai‘i, August 19, 2026.

/s/ Amanda L. Dutcher
AMANDA L. DUTCHER

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION, STATE OF HAWAI`I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. v. NIKODEM PIKOR

Civil No. 1RC19-1-0003776

DECLARATION OF NIKODEM PIKOR

I, NIKODEM PIKOR, declare under penalty of perjury as follows:

1. I am the defendant in this case. I write this from personal knowledge.

2. I want to appeal the June 23, 2026 judgment. I have never told anyone otherwise, and I said so in writing to my counsel on August 17, 2026.

3. In September 2025, my email account nikodempikor@gmail.com was compromised. I have not been able to get it back since, despite ongoing efforts to recover it. This was the address my counsel had used for case correspondence up to that point.

4. I moved to using niko@mojehawaje.pl. I used it to write to my counsel on other matters, including July 21, 2026. I did not, at that time, write a separate notice saying "the old address is dead, use only this one for anything related to the judgment." I should have done that, in writing, and I didn't. That was my mistake, and I'm not going to pretend otherwise.

5. But I want to be precise about what that mistake was and wasn't. It wasn't that I disappeared or became unreachable. My phone number has been the same throughout this entire case — it is on every email I have sent my counsel, including the one from July 21. To my knowledge, no one from the firm called that number between June and August about the fees order or the judgment. I don't know why. I'm not accusing anyone of anything; I genuinely don't understand it, and I think it matters.

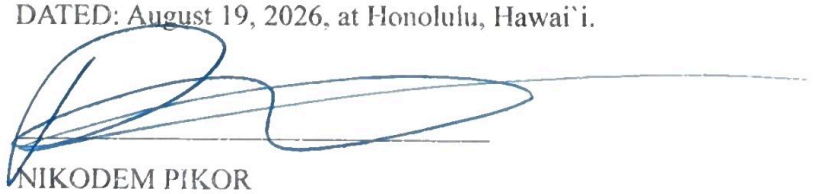
6. The first time I actually received the judgment, the fees order, and the Horio letter at an address I was using was August 14, 2026, at 11:52 a.m., when my counsel sent them to niko@mojehawaje.pl. I responded the same week asking for the appeal to be preserved.

7. I am not asking the court to treat me as someone who was impossible to reach. I was reachable. I am asking the court to consider that notice of something this consequential — a judgment for $211,747.77 — went out only by email, to an address that had gone quiet, when a working phone number for me was on file the entire time.

8. I take responsibility for not confirming the address change in writing sooner. I do not think that failure, on its own, should be read as if I had abandoned this case or given up my right to appeal it. I said the opposite, in writing, the moment I actually saw the judgment.

I declare under penalty of perjury under the laws of the State of Hawai'i that the foregoing is true and correct.

DATED: August 19, 2026, at Honolulu, Hawai`i.



NIKODEM PIKOR

Defendant / Third-Party Plaintiff

FILED
DISTRICT COURT OF
THE FIRST CIRCUIT

2019 MAY 31 P 1:43

LEGAL DOCUMENTS
CLERK C. KOBATA

COMPLAINT (ASSUMPSIT-MONEY OWED); DECLARATION; EXHIBIT(S); SUMMONS

Form #1DC07

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAI'I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors

Reserved for Court Use

Civil No. 1RC19-1-3776

Defendant(s)

NIKODEM PIKOR

Filing Party(ies)/Filing Party(ies)' Attorney (Name, Attorney No., Firm Name (if applicable), Address, Tel. and Fax No.)
PHILIP L. LAHNE (3709) / GLENN S. HORIO (8151)
Anderson Lahne & Fujisaki LLP
733 Bishop Street, Suite 2301, Honolulu, Hawaii 96813
Telephone (808) 536-8177 Facsimile (808) 356-7631

Amount Claimed by Plaintiff: See Exhibit 1

Last Date of Indebtedness: May 24, 2019

COMPLAINT

1. This Court has jurisdiction over this matter and venue is proper.

2. On or about May 24, 2019, Defendant(s) owed money to Plaintiff(s) as follows:

See Exhibit 1

3. ☑ A copy of the written instrument on which the debt is based is attached as Exhibit 1 and Exhibit 2.

4. Plaintiff(s) asks for Judgment in the principal amount of $ See Exhibit 1.
In addition, the Court may award court costs, interest and reasonable attorney's fees.

5. The Servicemembers Civil Relief Act, 50 U.S.C. App. §501 may apply to a Defendant who is classified active duty as defined in the Act. Please check all that apply.
   - ☑ To the best of my knowledge, the Defendant is not an active duty member of the Military.
   - ☐ The following Defendant is an active duty member of the Military. Name: _____.
   - ☐ I am unable to determine whether the Defendant is an active duty member of the Military. Please attach separate sheet indicating what attempt was made to determine Defendant's military status.

Date: MAY 3 1 2019

Signature of Plaintiff(s)/Plaintiff(s) Attorney:

Print/Type Name(s): PHILIP L. LAHNE / GLENN S. HORIO

DECLARATION

I have read this Complaint, know the contents and verify that the statements are true to my personal knowledge and belief.
I DECLARE UNDER PENALTY OF PERJURY THAT THE ABOVE IS TRUE AND CORRECT.

Date: 5/27/19

Signature of Declarant:

Print/Type Name(s): WILLIAM E. DENISON, Property Manger

In accordance with the **Americans with Disabilities Act**, and other applicable State and Federal laws, if you require an accommodation for your disability when working with a court program, service, or activity please contact the District Court Administration Office at PHONE NO. 538-5121, FAX 538-5233, or TTY 539-4853 **at least (10) working days before** your preceeding, hearing, or appointment date.

I certify that this is a full, true, and correct copy of the original on file in this office.

Clerk, District Court of the above Circuit, State of Hawai'i

CommonLook®
508 Certified
Reprographics (02/09)

EXHIBIT 1

COMPA 1D-P-764

EXHIBIT "1"

EXHIBIT "1"

1. Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. ("Association") is a Hawaii nonprofit corporation of apartment owners which administers and operates the Marine Surf Waikiki condominium project situate at the intersection of Kuhio and Seaside Avenues, Waikiki, Honolulu, City and County of Honolulu, State of Hawaii ("Project"), existing as established pursuant to Chapter 514A and/or Chapter 514B, Hawaii Revised Statutes, as amended, (collectively "Condominium Property Law"); the Marine Surf Waikiki Declaration of Horizontal Property Regime dated November 3, 1965 ("Declaration") and the By-Laws of the Association of Apartment Owners of the Marine Surf Waikiki Condominium dated November 3, 1965 ("By-Laws"), recorded together in the Office of the Assistant Registrar, Land Court, State of Hawaii ("Land Court") as Document No. 390025; and the Marine Surf Waikiki Condominium Association of Apartment Owners House Rules (collectively "Project Documents"), as may be amended and/or restated, and acting by and through its Board of Directors.

2. Defendant NIKODEM PIKOR ("OWNER") is one of the owners of Unit No. 906 of the Marine Surf Waikiki condominium project located at 364 Seaside Avenue, Apartment No. 906, Honolulu, Hawaii 96815, by virtue of that certain Personal Representative's Deed dated April 3, 2013, and recorded in the Land Court as Document No. T-8509308, and owners are subject to and must comply with the Project Documents and the Condominium Property Law.

3. On August 3, 2018, OWNER was informed of the amounts owing for the costs of repairing the damage to one of the elevators at the Project, caused by OWNER on or about May 9, 2018 at approximately 3:11 p.m., when OWNER, without advance notice to the managing agent or front office, used the elevator to move large household goods, and during which time OWNER placed a large container in a position between the doors of the elevator so that when the elevator doors attempted to close, the doors were not allowed to close and therefore suffered damage for which repair was required ("Elevator Incident").

4. On or about August 3, 2018, demand was made upon OWNER for the amounts owing to the Association in connection with the Elevator Incident, and as reflected in the thyssenkrupp

invoice no. 5000875502 for the amount of $2,260.15 ("Invoice") a copy of which is included herewith as Exhibit "2", for the costs to repair the damage to the elevator, and which said Invoice was provided to OWNER on or about August 8, 2018, with a further demand for payment.

5. The damage to the elevator constitutes a violation of the Association's Governing Documents, and OWNER's failure to pay for the repair costs is a further wilful, wanton, and purposeful violation of the Project Documents.

6. On September 14, 2018, OWNER was again informed of the repair costs, and again on November 2, 2018 in connection with a demand for the legal fees and costs incurred by the Association in connection with having to seek OWNER's compliance with the Condominium Property Act and the Association's Project Documents, as the result of the Elevator Incident.

7. OWNER's denial and/or dispute of the Association's demand for reimbursement of the repair costs and the legal fees and costs incurred by the Association, are therefore construed in this instance to question the interpretation of the Association's Project Documents.

8. Through May 9, 2019, OWNER has failed, neglected and refused to pay the sum of $2,260.15, being the repair costs related to the Elevator Incident, in violation of the Project Documents and the Condominium Property Law, requiring the Association to retain legal counsel to enforce the Project Documents against OWNER, and therefore causing the Association to incur attorneys' fees and costs in connection with said enforcement efforts, and said fees and costs will continue to be incurred during the pendency of this action which further costs and expenses shall be shown and/or sought by appropriate motion.

9. As noted above OWNER is subject to and must comply with the Project Documents and the Condominium Property Law, which provide in relevant part as follows:

> **Article VI, Section 6(h) of the By-Laws provides:**
>
> Nothing shall be allowed, done or kept in any apartments or common elements of the project which would overload or impair the floors, walls or roofs thereof, or cause any increase in the ordinary premium rates or the cancellation or invalidation of any insurance thereon maintained by or for the Association, nor shall any noxious or offensive activity or nuisance be made or suffered thereon.

Section X. General, subsection E. of the House Rules provides in relevant part:

> Advance notice must be given to the Managing Agent or the Front Office when household goods or large furniture items are to be moved in order that an elevator can be scheduled for use.

Article VI, Section 2(c) of the By-Laws provides:

> Every apartment owner shall reimburse the Association for any expenditures incurred in repairing or replacing any common elements or furniture, furnishings and equipment thereof damaged or lost through the fault of such apartment owner or any person using the project under him and shall give prompt notice to the Managing Agent of any such damage, loss or other defect when discovered.

Section X. General, subsection A. of the House Rules, similarly provides:

> Owners are individually financially responsible for any damage or destruction to common elements that they cause or their tenants, guests, agents or persons working for them cause.

10. Article VI, Section 9 of the By-Laws provides for the establishment of the House Rules and Paragraph L. COMPLIANCE WITH DECLARATION, BY-LAWS AND DECISIONS, of the Declaration confirms the obligations of all owners at the Project, and their guests, servants and undertenants, to strictly observe said rules. Paragraph L. COMPLIANCE WITH DECLARATION, BY-LAWS AND DECISIONS, of the Declaration provides:

> All apartment owners, their tenants, families, servants and guests, and any other persons who may in any manner use the project or any part thereof, shall be bound by and comply strictly with the provisions of this Declaration, the by-laws of the Association and all agreements, decisions and determinations of the Association, as lawfully made or amended from time to time, and failure to comply with any of the same shall be grounds for an action to recover sums due, for damages or injunctive relief, or both, maintainable by the Managing Agent or Board on behalf of the Association or, in the proper case, by any aggrieved apartment owner.

Section XI. Enforcement, the House Rules provides:

> The violation of any House Rules adopted by the Board of Directors of the Marine Surf Association of Apartment Owners shall give the Board of Directors or its Agent, the right to enjoin, abate or remedy by appropriate legal proceedings, either at law or in equity, the continuance of any such breach, and all costs thereof, including attorneys' fees, shall be charged to and paid by the defaulting apartment owner.

11. Further, HRS § 514B-112(c) requires all owners, tenants, and persons using the property to comply strictly with the Project Documents and provides that failure to do so constitutes grounds for an action to recover sums due or injunctive relief or both maintainable by the Board on behalf of the Association:

> Each unit owner, tenants and employees of an owner, and other persons using the property shall comply strictly with the covenants, conditions, and restrictions set forth in the declaration, the bylaws, and the house rules adopted pursuant thereto. Failure to comply with any of the same shall be grounds for an action to recover sums due, for damages or injunctive relief, or both, maintainable by the managing agent, resident manager, or board on behalf of the association or, in a proper case, by an aggrieved unit owner.

12. HRS § 514B-157 provides that all costs and expenses, including reasonable attorneys' fees, incurred by or on behalf of the Association in enforcing any provision of the Project Documents and the Condominium Property Law against an owner, occupant, tenant, employee of an owner, or any other person who may in any manner use the property, shall be promptly paid on demand to the Association by such person or persons. Accordingly, OWNER is liable for the attorneys' fees and costs incurred by the Association in connection with the violations of the Project Documents noted herein, and additionally, the Association is entitled to recover fees under HRS §607-14. Also, Paragraph L. COMPLIANCE WITH DECLARATION, BY-LAWS AND DECISIONS, of the Declaration and Section XI. Enforcement, of the House Rules, also provides for OWNER's obligation for the legal fees and costs incurred by the Association in having to compel OWNER's compliance with the Project Documents and the Condominium Property Law.

13. The Association seeks an award of the Association's costs and expenses, including, but not limited to, the amount reflected in the Invoice (being $2,260.15, as shown on Exhibit "2") and reasonable attorneys' fees and costs incurred in connection with the instant action and the enforcement of the Project Documents and the Condominium Property Law, to be shown by appropriate motion.

EXHIBIT "2"

thyssenkrupp

thyssenkrupp Elevator Corporation
Attn: Accounts Receivable Dept
1265 E FORT UNION BLVD STE 350
COTTONWOOD HEIGHTS, UT 84047

INVOICE

INVOICE DATE:	05/16/2018
CUSTOMER #:	73744
SR #:	33409266
INVOICE #:	5000875502
PO #:	
TERMS:	IMMEDIATE
TOTAL DUE:	$2,260.15

#6130 P.O. 1518

BILL TO:

ATTN: ACCOUNTS PAYABLE
AOAO MARINE SURF WAIKIKI INC
364 SEASIDE AVE
HONOLULU, HI 96815-2532

SHIP TO:

MARINE SURF WAIKIKI
364 SEASIDE AVE
HONOLULU, HI 96815-2532

Reported By: HAROLD HITCHCOCK, 808-754-8559 on 09-May-2018 15:24:00
Resolution Summary: CUSTOMER REPORTED: ELEVATOR NOT RESPONDING, OT OK. TECH (2): FOUND DOORS KNOCKED OFF TRACK. WILL RETURN TO FIX. 5/10 ADJUSTED DOOR HANGERS AND INTERLOCK, TESTED AND RETURNED TO SERVICE. BILLING DUE TO MISUSE NOT GOVERED BY CONTRACT.

DATE	DESCRIPTION	QTY	UOM	PRICE	AMOUNT
	HONOLULU BRANCH **Unit: 1 Serial #:** US133680 **Contract #:** US52787 Platinum Premiere - Full Maintenance, 24 Hour Callbacks Included - Elevator - With Phone Monitoring				
05/10/2018	Labor Callback Daytime	1	HR	$477.00	$477.00
05/10/2018	Travel Daytime	.25	HR	$477.00	$119.25
05/10/2018	Labor Callback Daytime	1	HR	$477.00	$477.00
05/09/2018	Travel Extra Work Outside the Contract Daytime	.5	HR	$477.00	$238.50
05/09/2018	Labor Extra Work Outside Contract Daytime	.5	HR	$477.00	$238.50
05/09/2018	Travel Extra Work Outside the Contract Overtime	.75	HR	$810.90	$608.18

AMOUNT	SALES TAX	PLEASE PAY THIS AMOUNT
$2,158.43	$101.72	$2,260.15

This charge was created because service was not covered by maintenance contracts you may have with thyssenkrupp Elevator.
For Service Related or General Questions, please call 808-834-6300 . For Billing or Payment Questions, please call 801-449-8227 .

DETACH AND RETURN WITH YOUR PAYMENT

thyssenkrupp

thyssenkrupp Elevator Corporation
Attn: Accounts Receivable Dept
1265 E FORT UNION BLVD STE 350
COTTONWOOD HEIGHTS, UT 84047

INVOICE DATE:	05/16/2018
CUSTOMER #:	73744
SR #:	33409266
INVOICE #:	5000875502
PO #:	
TERMS:	IMMEDIATE
TOTAL DUE:	2,260.15

Amount Enclosed: $_____

Payment Method
☐ Personal check enclosed ☐ Money order enclosed ☐ Cashier's check
Please Make Check Payment To: thyssenkrupp Elevator Corporation

REMIT PAYMENT TO:

thyssenkrupp Elevator Corporation
PO BOX 933004
ATLANTA, GA 31193-3004

EXHIBIT "2"

SUMMONS

Form #1DC50

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU **DIVISION**
STATE OF HAWAI'I

Plaintiff

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors

Reserved for Court Use

Civil No.

Defendant

NIKODEM PIKOR

Filing Party/Attorney Name, Attorney Number, Firm Name (if applicable), Address, and Telephone Number

PHILIP L. LAHNE (3709)
GLENN S. HORIO (8151)
Anderson Lahne & Fujisaki LLP
733 Bishop Street, Suite 2301
Honolulu, Hawaii 96813
Telephone (808) 536-8177
Facsimile (808) 356-7631

SUMMONS

THE STATE OF HAWAI'I:

TO: The Director of Public Safety of the State of Hawai'i, the Director's deputy, or any police officer or other person authorized by the laws of the State of Hawai'i:

This Summons shall not be personally delivered between 10:00 p.m. and 6:00 a.m. on premises not open to the public, unless a Judge permits, in writing on this Summons, personal delivery during those hours.

TO THE DEFENDANT:

You are required to file a written answer or appear before the District Judge of this Court, in the Judge's Courtroom, on the day and at the time designated by the checked box on page 2. If the Defendant is a corporation or limited liability company, Hawai'i law requires it to be represented by an attorney licensed to practice in the State of Hawai'i.

IF YOU OR YOUR ATTORNEY FAIL TO ATTEND THE COURT HEARING AT THE TIME AND PLACE DESIGNATED OR FILE A WRITTEN ANSWER A DEFAULT JUDGMENT WILL BE TAKEN AGAINST YOU FOR THE RELIEF DEMANDED IN THE COMPLAINT.

NOTICE TO PARTIES: (Honolulu Division only): If this case involves a residential lease and if the Defendant(s) disagrees with the statements in the Complaint, the Court may require the parties to submit their dispute to mediation at the Pre-Trial conference that will be scheduled on the Monday, not a holiday, following the court date specified above. If the Monday following your court date is a holiday, the Pre-Trial conference will occur on the next business day. If the parties are not able to resolve the dispute within 20 minutes of mediation, the Cout will set a trial date.

Date: MAY 31 2019

Clerk C. KOBATA (SEAL)

SEE PAGE 2

COURT ADDRESSES AND RETURNABLE DAYS:

☒ **Honolulu Division, 1111 Alakea Street, 10th floor Courtroom 10A or 10B, Honolulu, Hawai'i**

☐ at 8:30 a.m. on the fifth day following date of service, excluding Saturdays, Sundays, legal holidays for summary possession.

or

☑ at 1:30 p.m. on the second Monday following date of service, and should that Monday be a legal holiday then upon the next business day.

☐ **'Ewa Division, 870 Fourth Street, Pearl City, Hawai'i**

☐ at 9:00 a.m. on the second Thursday following date of service, and should that Thursday be a legal holiday then upon the next Thursday.

☐ **Ko'olaupoko OR Ko'olauloa Division, 45-939 Po'okela Street, Kāne'ohe, Hawai'i**

☐ at 9:00 a.m. on the second Friday following date of service, and should that Friday be a legal holiday then upon the next Friday.

☐ **Wahiawā OR Waialua Division, 1034 Kilani Avenue, Wahiawā, Hawai'i**

☐ at 9:00 a.m. on the second Wednesday following date of service, and should that Wednesday be a legal holiday then upon the next Wednesday.

☐ **Wai'anae Division, 4675 Kapolei Parkway, Kapolei, Hawai'i**

☐ at 9:00 a.m. on the second Tuesday following date of service, and should that Tuesday be a legal holiday then upon the next Tuesday.

Mailing address for the Courts: **1111 Alakea Street, Civil Division, Third floor, Honolulu, Hawai'i 96813**

In accordance with the Americans with Disabilities Act and other applicable state and federal laws, if you require an accommodation for a disability when working with a court program, service, or activity, please contact the District Court Administration Office at PHONE NO. 538-5121, FAX 538-5233, or TTY 539-4853 at least ten (10) working days before your proceeding, hearing, or appointment date. **For Civil related matters, please call 538-5629 or visit the District Court Service Center at 1111 Alakea Street, Third (3rd) Floor.**

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAI'I

Electronically Filed
FIRST CIRCUIT
1RC191003776
15-JUN-2026
01:32 PM
Dkt. 423 ORD

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit nonprofit corporation, by its Board of Directors, Plaintiff and Counterclaim Defendant, vs. NIKODEM PIKOR, Defendant and Counterclaim Plaintiff.	CIVIL NO. 1RC191003776 ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS Trial Dates: May 12, 2022, October 26-27, 2022, January 11-12, 2023, April 5, 2023 Hearing: January 13, 2025 Judge: Hon. Chris A. Thomas
NIKODEM PIKOR, Defendant and Third Party Plaintiff, vs. THYSSENKRUP ELEVATOR CORPORATION, a foreign profit Corporation. Third Party Defendant.	

ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS

I do hereby certify that the foregoing is a full, true and correct copy of the official court record of the Courts of the State of Hawai`i.
Dated at: Honolulu, Hawai`i 15-JUN-2026, /s/ Lori Ann Okita, Clerk of the First Judicial Circuit, State of Hawai`i

EXHIBIT 2

Plaintiff/Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF INC., a Hawai'i nonprofit corporation, by its Board of Directors ("Association") requests a total award of **$257,097.50** in attorneys' fees and for total costs in the amount of **$12,743.54**, for a total amount of **$269,841.04**. After six days of trial, the Association's Motion was submitted based on the judgment on its motion for directed verdict awarding the Association the total sum of **$2,260.15**, filed on August 1, 2024.

The Association filed its Motion for Attorneys' Fees on June 27, 2024 (Association's Motion"), and Defendant/Counterclaimant NIKODEM PIKOR ("Pikor") filed its Opposition on July 31, 2024. The Association filed its Reply Memorandum in Support on August 1, 2024. A hearing on Association's Motion was held on January 13, 2025. After careful consideration of Association's Motion, as well as supporting and opposing memoranda, supporting declarations and exhibits, and the relevant legal authority, this Court hereby GRANTS IN PART AND DENIES IN PART the Association's Motion.[1]

"Ordinarily, attorneys' fees cannot be awarded as damages or costs unless so provided by statute, stipulation or agreement." *Stanford Carr Dev. Corp vs. Unity House, Inc.,* 111 Hawai'i 286, 305, 141 P.3d 459, 478 (2006) (citation and quotation marks omitted). In Hawai'i, attorneys' fees shall be awarded when provided by

[1] This Court heard the Association's Motion, however, was not the Judge that sat on and heard the six days of trial. Judge Summer Kupau-Odo heard this matter at trial. Therefore, this Court reviewed the docket sheet, pleadings and trial exhibits that this Court deemed relevant to rule on Association's Motion.

statute, stipulation or agreement. *Food Pantry, Ltd., vs. Waikiki Business Plaza, Inc.*, 58 Hawai'i 606, 618 575 P.2d 869, 878 (1978). In accordance with Hawai'i Revised Statutes "HRS" § 514B-157, the Association is entitled to an award for "[a]ll costs and expenses, including reasonable attorneys' fees"..."[e]nforcing any provisions of the declaration, bylaws [a]nd house rules...against an owner..." HRS § 514B-157(a)(3) (2024). The "provisions of the declaration, by laws and house rules" that were enforced in this action are contained in Exhibit 1 of the Complaint filed by the Association on May 31, 2019. Dkt. 1. There is no question in this case that the Association is the prevailing party.

In determining the amount of attorneys' fees, although the District Courts of the State of Hawai'i are courts of limited jurisdiction, HRS § 604-5, specifically states that "Attorney's commissions or fees, including those stipulated in any note or contract sued on, interests and costs, shall not be included in computing the jurisdictional amount."

Rule 1.5 of the Hawai'i Rules of Professional Conduct ("HRPC") requires that a lawyer's fee be reasonable. The Rule enumerates several factors to be considered in determining reasonableness of attorneys' fees. The factors of particular importance listed by HRPC 1.5 to this Court are the following:

> (1) The time and labor required, the novelty and difficulty of the questions involved, and the skill requisite to perform the legal service properly;
>
> *
>
> (3) The fee customarily charged in the locality for similar legal services;
>
> *
>
> (4) The amount involved and the results obtained.

The party requesting fees has the burden to prove that the requested fees were reasonably and necessarily incurred. *Sharp v. Hui Wahine*, 49 Hawai'i 241, 246, 413 P.2d 242, 247 (1966).

The Association was represented by two separate attorneys and respective law firms. Pikor, in his Answer filed on July 8, 2019, asserted two Counterclaims against the Association. Dkt. 5. After further litigation and eventual leave of Court, Pikor, with new counsel, filed an Amended Answer on July 9, 2020, which now asserted seven Counterclaims. The law firm of Roecca Luria Shin LLP represented the Association in defense of Pikor's Counterclaims. The initial lawyer from the law firm was April Luria, however, James Ferguson ("Attorney Ferguson") assumed representation of the Association for the substantial majority of the case. In his Declaration, Attorney Ferguson represented that his law firm represented the Association from January 31, 2019, to and including January 31, 2024,[2] and that approximately 424.3 hours were devoted to the case. *See*, Declaration of James Ferguson, p.2, Association's Motion. Of the total amount of attorneys' fees requested, the portion requested by Attorney Ferguson, and his respective law firm, is **$73,053.03.** The law firm also requests **$85.53** in costs.

A thorough review of the itemized billing statements attached as Exhibit "A" to the declaration of James Ferguson reveals that the statements contain

[2] Although the representation was stated to begin on January 31, 2019, a review of the itemized billing statements attached as Exhibit "A" to the declaration of James Ferguson reveals that the first dated entry is 7/31/2019, with a "review of the claim file and complaint." *see*, Association's Motion.

descriptive and precise entries as to the work performed. The billing statements are well organized and easy to comprehend with each invoice summarizing the total amount of hours expended during the applicable time period by the respective attorney and billing rate. The substantial majority of the billing entries were for work performed by Attorney Ferguson, an attorney who practiced primarily in the area of civil litigation since 2000. The billing rate for Attorney Ferguson for this case was $190 per hour. The Court finds that this hourly rate was reasonable. Apparent to the Court was that the scope and necessity of the work performed by Attorney Ferguson, and the other attorneys in his respective law firm (Attorney Ferguson was assisted by two associates), were exclusively and primarily driven by Pikor's legal actions and position. As a primary example, Pikor filed his Amended Answer with seven Counterclaims on July 9, 2020. Dkt. 97. In direct response, Attorney Ferguson, with the help of his associates, performed legal research, filed an Amended Answer, engaged in repeated and necessary motions practice, participated in depositions, and ultimately filed a Motion for Summary Judgment ("MSJ") on December 28, 2021. Dkt. 236. The hearing on that MSJ was held on February 22, 2022, and the Order by the Court was issued on April 5, 2022, which resulted in four of the seven Counterclaims by Pikor being dismissed. Dkt. 303. During that period when Pikor filed his Amended answer on July 7, 2019, through April 5, 2022, Attorney Ferguson, by direct consequence to Pikor's legal actions, expended approximately 240 hours from the total amount of the 424.3 hours supporting his request for attorneys' fees.

The one factor of HRPC Rule 1.5, that weighs heavily on the Court in reviewing the Association's Motion, is "(4) The amount involved and results obtained." In other words, is the amount of attorneys' fees requested reasonable and necessary to defend the Association against Pikor's counterclaims in this case. However, also of import to the Court is that the Complaint filed by the Association on May 31, 2019, detailed in Exhibit 1, the Association's theory of Pikor's legal responsibility through the Association's declaration, by laws and house rules and also clearly served notice to Pikor that he could potentially be held legally accountable for attorneys' fees and costs. Based on those factors and a review of Exhibit "A" to James Ferguson's declaration, this Court finds that the scope, type of work performed and the time allocated per task were reasonable and necessary and is accordingly awarded **$73,053.03** in attorneys' fees, and **$85.53** in costs.

From the inception of this case, the Association was also represented by Glenn Horio ("Attorney Horio") on its affirmative claim for the May 9, 2018 incident with Pikor that caused damage to the Association elevator. During the entire course of this case, Attorney Horio was a consecutive member of two different law firms. In his Declaration, Attorney Horio attached Exhibit "1" which are the invoices of the attorneys' fees when Attorney Horio was a member of the law firm Deeley King Pang & Van Etten for this case during the time period from March 5, 2020, through July 26, 2024. *See* Association's Motion. Also, in his Declaration, Attorney Horio attached Exhibit "2" which are the invoices of the attorneys' fees when Attorney Horio was a member of the law firm Anderson & Fujisaki LLP, for

this case during the time period from July 25, 2018, through February 13, 2020. *See* Association's Motion. In his declaration, Attorney Horio does not set out the approximate total hours that were devoted to the case. *See*, Declaration of Glenn Horio, Association's Motion. Attorney Horio billed at the rate of $260 to $275 per hour and has been practicing since 2004.[3] Of the total amount of attorneys' fees requested, the portion requested by Attorney Horio, and his respective law firms, is **$184,044.47.**[4] There is also a request for **$12,658.01** in costs.

Based on a chronological approach, a thorough review of the itemized billing statements attached as Exhibit "2" to the Declaration of Glenn Horio was difficult. Many of the billing entries were vague and there was a substantial number of redactions throughout that restricted this court from determining reasonableness and necessity. There were also instances of double billing, where conferences attended between the attorneys were billed by both attorneys, resulting in the billable hourly rate of $560[5] or more.[6] A thorough review of the itemized billing

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[3] Glenn Horio had 4 years less experience than James Ferguson, who was billing at $190 per hour in the same case, effectively representing the same client although on different claims.

[4] The Declaration of Glenn Horio does not breakdown the separate invoice amount for each respective law firm that added up to the total amount of $184,044.47.

[5] Exhibit "2" invoices did not summarize billable rates and total hours so the exact rate charged by Glenn Horio was not stated. In his Declaration, Glenn Horio stated his hourly rate was between $260 and $275. *See*, Declaration of Glenn Horio, p. 5 para. 8. in Association's Motion.

[6] Double billing entries in Exhibit "2" for meetings between GSH and PLL and billed by both attorneys occurred on the following invoices: 10/15/18, 11/15/18, 12/15/18, 2/15/19, 8/15/19 and 2/15/20.

statements attached as Exhibit "1" to the Declaration of Glenn Horio was difficult for the same reasons. Again, many of the billing entries were vague and there were a substantial number of redactions throughout that restricted this court from determining reasonableness and necessity. There were also instances of double billing, where conferences attended between the attorneys were billed by both attorneys, resulting in the billable hourly rate of $570.[7] In addition, although solely prosecuting a single affirmative claim to enforce recovery in the total amount of **$2,260,15**, two attorneys attended each trial date, despite the fact that the issues in this case were neither novel nor difficult. Therefore, the billable rate per hour on the six trial dates for both attorneys to attend was $420. A review of the billing statements for the same time periods also reveal that the effective rate of $420 was also incurred when both attorneys prepared for trial.[8]

Based on the above comprehensive review of the billing statements, the court also considered the factors enumerated in HRPC Rule 1.5, and concludes that the amount requested in attorneys' fees is not an amount that was reasonable, nor based on necessity.

In the review of all of the billing statements contained in both Exhibit "1" and "2", attached to the Declaration of Glenn Horio, the Court, based on its own

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[7] Double billing entries in Exhibit "1" for meetings between GSH and DWK, and/or GSH and TA or YK, and billed by both attorneys occurred on the following invoices: 6/30/20, 8/4/20, 2/10/21, 4/15/21, 5/19/21, 12/6/21, 2/3/22, 2/14/22, 3/28/22, 6/7/22, 7/1/22, 7/20/22, 8/17/22, 3/24/23 and 9/6/23.

[8] Double billing in Exhibit "1" for preparing and attending trial occurred on the following invoices: 8/17/22, 11/9/22, 3/24/23 and 8/10/23.

analysis, was able to determine that the total number of hours billed by all 10 attorneys from the two law firms that worked in this case was approximately 655.6 hours.[9] Based on the billing practices and the discrepancies identified above, and in consideration of all of factors identified in HRPC Rule 1.5, this Court believes that a reduction in the amount of the attorneys' fees is warranted. The Court believes that the lodestar method is applicable in this case. *DFS Group L.P. vs. Paiea Properties*, 110 Hawai'i 217, 222, 131 P.3d 500, 505 (2006); *Gurrrobat vs. HTH Corp.* 135 Hawai'i 128, 346 P.3d 197 (2015), *QBE Specialty Insurance Company vs. Uchiyama,* 2024 WL 3554565 (D.Hawaii'i 2024*); see also, Hensley vs. Eckerhart*, 461 U.S. 424, 433, 103 S.Ct. 1933, 76 L.Ed.2d 40 (1983) (the most useful starting point for determining the amount of a reasonable fee is the number of hours reasonably expended on the litigation multiplied by a reasonable hourly rate).

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[9] The total number of hours was not provided in the Declaration of Glenn Horio, although the hourly billable rate was. *See* Association's Motion. This total number was calculated by the Court in its review of the voluminous billing statements. The total hours breakdown for each of the attorneys was determined to be:

Attorney	Total Hours	Hourly Billable Rate
Glenn S. Horio	486.8	$260 to $275
Phillip L. Lahne	10.7	$300
Paul Ireland-Koftinow	.3	$270
Lance S. Fujisaki	.2	$335
Patricia D. Anguay	9.5	$150 to $160
Dennis W. King	7.4	$295
Tristan Andres	1.4	$175
Monica M. Wurlitzur	8.3	$125
Yun W. Kim	117.3	$145
Craig Okahara-Olsen	13.7	$115

Taking into consideration, co-counsel James Ferguson's hourly rate of $190 in the successful defense of seven original Counterclaims in this same case, the Court concludes that an average of the different two rates, an hourly rate of $225, constitutes a reasonable rate in this particular case. After a thorough examination of the billing statements, as well as a careful review of the record, this court concludes that 525 hours were reasonable and necessary.[10] This amount takes into account, a reasonable and more prudent use of associate attorney hours and the elimination of double billing. Finally, the lodestar method instructs this Court to multiply the reasonable rate by the sum of reasonable hours. *DFS L.P. Group, infra.* Accordingly, applying a rate of $225 per hour to a sum of 525 hours, this Court concludes that Attorney Horio and his respective law firms is awarded $118,125.00 in reasonable and necessary attorneys' fees and $5,566.05 in taxes. The calculation by this Court effectively reduces the amount request by approximately 35%. *DFS L.P. Group, infra.* This Court therefore determines that an award for attorneys' fees to Attorney Horio (and his respective law firms) that is reasonable and necessary is **$123,691.05**[11]

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[10] This amount is higher than the 424.3 hours that the Court found reasonable for James Ferguson, however, Glenn Horio was the lead attorney and represented the Association immediately following the May 9, 2018, elevator incident and throughout the pre-trial stage.

[11] It is not before this Court to determine the distribution between the respective law firms, but believes a pro rata percentage reduction of the total amount for each law firm's total billings would be appropriate.

The Court also awards to Attorney Horio (and his respective law firms) the total costs of **$12,658.01**[12] A significant amount of these costs, $11,417.96, is attributed to Expert witness costs. Expert witness fees are not normally allowed. *See Mist vs. Westin Hotels, Inc.* 69 Hawai'i 192, 202, 738 P.2d 85, 92 (1987)(*citing Lucas vs. Liggett & Myers Tobacco Co.*, 51 Hawai'i 346, 347, 461 P.2d 140, 142 (1960). However, this Court is cognizant that there were several attempts to resolve this case in a reasonable manner at the very inception and throughout the pre-trial process. Exhibits J1 through J13, admitted at trial (Dkt. 345), is correspondence between the Association and Pikor that evidences a clear attempt by the Association to resolve this case in a reasonable manner from the outset, while cautioning Pikor that if their offer was not accepted, that Pikor could clearly be held liable for attorneys' fees and costs. *See Canalez v. Bob's Appliance Service Center, Inc.*, 89 Hawai'i 292, 308, 972 P.2d 295, 311 (1999). Pikor also had an expert witness testify at trial. Dkt. 363. This Court also noted that Judge Summer Kupau-Odo in the Findings of Fact, Conclusions of Law and Order Granting Plaintiff/Counter Claim Defendant's Motion for Directed Verdict, relied upon the testimony of the Association's expert and also found the Association's expert more credible than Pikor's expert. *See* Dkt. 396 at p. 9 and footnote 4.

Again, as to Attorney Horio's request for attorneys' fees the one factor of HRPC Rule 1.5, that weighs heavily on the Court in reviewing the Association's

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[12] To be distributed to the respective law firms in accordance with the billing statements as provided in Exhibit "1" and Exhibit "2" attached to the Declaration of Glenn Horio.

Motion, is "(4) The amount involved and results obtained." In other words, is the amount of attorneys' fees requested reasonable and necessary to prosecute their one affirmative claim against Pikor in this case. As previously stated, also of import to the Court is that the Complaint filed by the Association on May 31, 2019, detailed in Exhibit 1, the Association's theory of Pikor's legal responsibility through the Association's declaration, by laws and house rules and also clearly served notice to Pikor that he could potentially be held legally accountable for attorneys' fees and costs. The Association was also insistent on resolving the matter reasonably at the inception of this case and throughout the pre-trial process and Pikor repeatedly and consistently refused. Instead, Pikor determined the complexion of this case by seeking to add five more counterclaims, which resulted in extended litigation and necessitating further litigation.

Therefore, IT IS HEREBY ORDERED Plaintiff/Counterclaimant Defendant is hereby awarded reasonable attorneys' fees in the total amount of **$196,744.08** and total costs in the amount of **$12,743.54**.

DATED: JUN 15 2026, Honolulu, Hawai`i.

HONORABLE CHRIS A. THOMAS
Judge of the above-entitled court

CHRIS A. K. THOMAS

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Plaintiff, vs. NIKODEM PIKOR, Defendant.	Civil No. 1RC19-1-0003776 CERTIFICATE OF SERVICE

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the date below, a true and correct copy of the foregoing was duly served upon the following individuals via JEFS to their last known address noted below:

GLENN S. HORIO, ESQ. *gh@dkpvlaw.com*
Deeley King Pang & Van Etten
1003 Bishop Street, Suite 1550
Honolulu, Hawai'i 96813

Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.

JAMES R. FERGUSON *aluria@rlhlaw.com*
Roeca Luria & Shin, LLP
841 Bishop Street, Suite 900
Honolulu, Hawaii 96813

Attorney for Counterclaim Defendant

ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.

Dated: Honolulu, Hawaii, August 19, 2026.

/s/ *Amanda L. Dutcher*

TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Defendant/Counterclaim Plaintiff
NIKODEM PIKOR